

26STCV03900 26STCV03900

County: los-angeles

Division: Civil Law and Motion

Department: 11

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Case Number: 26STCV03900 Hearing Date: September 3, 2026 Dept: 11

Nguyen (26STCV03900)

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Tentative

Ruling Re: Motion to Compel Arbitration

Date: 9/3/26

Time: 11:00 am

Moving Party: SoCal Premier

Marketing, Inc. ("SoCal Premier" or "Defendant")

Opposing Party: Phuong Nguyen, Elizabeth Rolon, and Kiara

Bulnes (collectively "Plaintiffs")

Department: 11

Judge: Bruce G.

Iwasaki

TENTATIVE RULING

Defendant's request for judicial

notice and reply request for judicial notice are granted. The exhibits are court records. The Court will judicially notice the documents'

existence.

Defendant's evidentiary objections

are sustained. Plaintiff Nguyen's

declaration and Plaintiff Rolon's declaration are unsigned and undated. The Court will not consider them.

Defendant's motion to compel

arbitration is granted.

The Court strikes the class claims.

BACKGROUND

This is a putative class action. Plaintiffs used to work for SoCal

Premier. They claim SoCal Premier

subjected them and other current and former non-exempt employees to numerous wage-and-hour violations.

Here, SoCal Premier moves to compel

arbitration.

DISCUSSION

Existence and Consent

"[W]hen a petition to compel arbitration is filed and

accompanied by prima facie evidence of a written agreement to arbitrate the controversy, the court itself must determine whether the agreement exists and .

. . . whether it is enforceable." (Rosenthal

v. Great Western Financial Securities Corp. (1996) 14 Cal.4th

394, 413.) "[T]he threshold

question . . . is whether there is an agreement to arbitrate." (Cruise v. Kroger Co. (2015) 233

Cal.App.4th 390, 396, emphasis in original.)

Determination of whether an arbitration agreement exists

is a three-step process. "First, the

moving party bears the burden of producing 'prima facie evidence of a written agreement to arbitrate the controversy.'"

(Gamboa v. Northeast Community Clinic (2021) 72 Cal.App.5th 158, 165.) “The moving party ‘can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party’s] signature.’” (Ibid.) In the alternative, “the moving party can meet its burden by setting forth the agreement’s provisions in the motion.” (Ibid.)

“If the moving party meets its initial prima facie burden and the opposing party disputes the agreement, then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement.” (Ibid.) “The opposing party can do this in several ways.” (Ibid.) “For example, the opposing party may testify under oath or declare under penalty of perjury that the party never saw or does not remember seeing the agreement, or that the party never signed or does not remember signing the agreement.” (Ibid.)

“If the opposing party meets its burden of producing evidence, then in the third step, the moving party must establish with admissible evidence a valid arbitration agreement between the parties.” (Ibid.) “The burden of proving the agreement by a preponderance of the evidence remains with the moving party.” (Id. at 165-166.)

Defendant passes the first step. The moving papers include physical copies of the arbitration agreements. (See Hill Decl., Exs. 1-3; see also Gamboa, supra, 72 Cal.App.5th at 165.)[1]

For the second step, Plaintiffs declare that they do not recall signing the agreements. (See Nguyen Decl., ¶ 7; see also Rolon Decl., ¶ 7; Bulnes Decl., ¶ 7.)

The second step is satisfied in part and unsatisfied in part. Iyere v. Wise Auto Group (2023) 87 Cal.App.5th 747 instructs that an “individual’s inability to recall signing electronically may reasonably be regarded as evidence that the person did not do so.” (Iyere, supra, 87 Cal.App.5th at 757.) Plaintiff Bulnes’s declaration (signed and dated) meets this requirement, and Plaintiffs Nguyen’s and Rolon’s declarations

(unsigned and undated) do not.

Which brings the Court to the third step. Plaintiffs challenge authentication. They claim Defendant's declarants lack personal knowledge to authenticate the e-signatures. (See Opposition, pp. 4-7.)

The Court finds the third step satisfied. "Authentication of a writing means (a) the introduction of evidence sufficient to sustain a finding that it is the writing that the proponent of the evidence claims it is or (b) the establishment of such facts by any other means provided by law." (Knight, Cal. Practice Guide: Alternative Dispute Resolution (The Rutter Group 2025) ¶ 5:321.1 [quoting Evidence Code section 1400].) "An 'electronic signature is attributable to a person if it was the act of the person' and this may be shown in any manner." (Id. at ¶ 5:321.3.) "[A] party may establish that the electronic signature was 'the act of the person' by presenting evidence that a unique login and password known only to that person was required to affix the electronic signature, along with evidence detailing the procedures the person had to follow to electronically sign the document and the accompanying security precautions." (Bannister v. Marinidence Opco, LLC (2021) 64 Cal.App.5th 541, 545.) The Hill declaration and the Clater declaration supply the requisite information. (See Hill Decl., ¶¶ 7-9; see also Clater Decl., ¶¶ 4-8.) The Court finds the declarations credible.

Defendant's burden to establish agreements to arbitrate is met.

Federal Arbitration Act ("FAA")

Defendant contends the FAA governs the agreements. (See Motion, pp. 6-7.)

This issue is uncontested.

The FAA applies if the plain language says it applies or if "the underlying contract facilitates interstate commercial transactions or directly or indirectly affects" interstate commerce. (Knight, *supra*, at ¶ 5:50.2, emphasis in original.) The agreements state: "Employment with Employer involves interstate commerce;

therefore, this Policy is subject to the FAA.”

(Hill Decl., Ex. 1 [“Controlling Law” section]; see also id. at Ex. 2 [same]; id. at Ex. 3 [same].)

The wording

renders the FAA applicable.

Unconscionability and Enforcement

Unconscionability is a contract defense that can be utilized to “invalidate [an] arbitration agreement[.]” (Torrecillas v. Fitness International, LLC (2020) 52 Cal.App.5th 485, 492.)

Courts apply state law to test whether the agreement is unconscionable. (See, e.g., Lagatree v. Luce, Forward, Hamilton & Scripps (1999) 74 Cal.App.4th 1105, 1119.)

“[U]nconscionability has both a procedural and a substantive element, the former focusing on oppression or surprise due to unequal bargaining power, the latter on overly harsh or one-sided results.” (Armendariz v. Foundation Health Psychcare Services, Inc. (2000) 24 Cal.4th 83, 114, internal quotation marks omitted.) “The prevailing view is that [procedural and substantive unconscionability] must both be present in order for a court to exercise its discretion to refuse to enforce a contract or clause under the doctrine of unconscionability.” (Ibid.) “But they need not be present in the same degree.” (Ibid.) “Essentially a sliding scale is invoked which disregards the regularity of the procedural process of the contract formation, that creates the terms, in proportion to the greater harshness or unreasonableness of the substantive terms themselves.” (Ibid.) “In other words, the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa.” (Ibid.)

The burden belongs to the party opposing arbitration. (See Ajamian v. CantorCO2e, L.P. (2012) 203 Cal.App.4th 771, 795.)

Procedural element: Plaintiffs assert that the agreements constitute contracts of adhesion and were presented with multiple “other onboarding documents that Defendant required Plaintiffs to

electronically execute as a condition of employment.” (Opposition, p. 9; see also id. at pp. 8, 10-11.)

The Court disagrees for three reasons. One, “a predispute arbitration agreement is not invalid merely because it is imposed as a condition of employment.” (Lagatree, supra, 74 Cal.App.4th at 1122.) Two, the plain language undercuts Plaintiffs’ argument:

You hereby acknowledge that you have read and understood this Mutual Dispute Resolution and Arbitration Policy and that you understand that it is binding on you.
You further acknowledge that the current version of the FedArb Rules is attached as Schedule 1 hereto and that you may at any time request a copy of the Arbitration Rules from Employer or FedArb or obtain them yourself by visiting www.fedarb.com and selecting “Rules.”

(Hill Decl.,
Ex. 1 [bolded paragraph just above signature line], bolding in original; see also id. at Ex. 2 [same]; id. at Ex. 3 [same].) Three, there is no statement under penalty of perjury stating that Plaintiffs requested extra time to read the onboarding documents or assistance from an attorney or other consultant to explain the meaning of the arbitration terms or that Defendant denied the requests, assuming they were made.
(Cf. Hill Decl., ¶ 10 [“Each time employees are asked to review and sign employment documents, whether during orientation at the start of employment or after they are employed, a SOCAL PREMIER employee at my direction is available to review all of the documents with employees and answer any questions employees may have regarding the documents.
Prior to signing any employment documents, all employees are instructed to read all of the documents, encouraged to ask questions about any of the documents, and are free to download hard copy printouts of the documents to review them prior to signing.”].)

Substantive element: Plaintiffs insist that the agreements lack mutuality. (See Opposition, pp. 12-13.)

The argument is unavailing. Plaintiffs fail to discuss any specific

provision in the agreements, let alone one that they claim is one-sided. (See *ibid.*) Making a vague, conclusory reference to the agreements

as a whole does not suffice.

Consequently, the level of procedural unconscionability is low, the level of substantive unconscionability is low, the agreements are enforceable, the class claims must be stricken, and the motion to compel is granted.[2]

[1] The moving party “is not required to authenticate an opposing party’s signature on an arbitration agreement as a preliminary matter” (*Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 846, emphasis in original), and the reviewing court “is only required to make a finding of the agreement’s existence, not an evidentiary determination of its validity.” (*Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 219.)

[2] Because the FAA applies, the class waivers must be enforced. (See, e.g., *Knight*, *supra*, at ¶ 5:49.4c [discussing *AT&T Mobility LLC v. Concepcion* (2011) 563 U.S. 333]; see also *Iskanian v. CLS Transportation Los Angeles, LLC* (2014) 59 Cal.4th 348, 359-360 [finding that the FAA preempts “a state’s refusal to enforce [] a [class] waiver on grounds of public policy or unconscionability”].)